with China, what guarantee was there Beijing would not use the tactic again – clashes followed by a swap offer? As Secretary General of the External Affairs Ministry N.R. Pillai explained to the British High Commissioner: 'If we gave way now on this matter, it would only encourage the Chinese to feel that they [India] were weak and to press even more ambitious claims later on.' Finally, the Indian Supreme Court clarified in March 1960, in the case of the Berubari enclaves in East Pakistan, that any territorial transfers would require an amendment of the Constitution. With growing domestic opposition to Nehru's China policy, enacting constitutional change would be a serious political challenge.[34]

Were these insuperable difficulties though? Could Delhi not have explored the swap further to test Zhou's sincerity? Nehru and his officials probably could and should have done so, but they had gone into the summit determined to reject the swap, and they let the opportunity go. Zhou was pessimistic coming into the summit, yet the Chinese were disappointed at the outcome. In response, China resumed setting up military posts in Aksai Chin.[35]

The fourth tipping point was the post-summit officials' talks in 1960–61 and its aftermath in Beijing in July 1961. The summit had ended in one point of agreement – that Indian and Chinese officials would take discussions forward on establishing the 'facts' about the border. The ensuing talks on the 'historical documents, records, accounts, maps and other relevant materials' achieved little, indeed may have led to further exasperation. The officials met in Beijing, Delhi, and Rangoon from June to December 1960 and produced seven reports of the discussions in early 1961. What was clear in the reports was the enormous gulf between the two sides. They were unable to agree on anything – which was the only thing they agreed on.[36]

Despite the failures of the 1960 summit and the officials' discussions, the two sides held 'unofficial talks' in Beijing in July 1961 (talks that have largely been forgotten). At the talks, the Chinese argued: 'one cannot get tangled up in the details. The relationship between our two countries is too important; we should view from a greater distance, from an elevated height,